

SENATE CHAMBER

STATE OF OKLAHOMA

DISPOSITION

☒ FLOOR AMENDMENT

No. 2

☐ COMMITTEE AMENDMENT

(Date)

I move to amend Senate Bill No. 931, by substituting the attached floor substitute (Request # 3709) for the title, enacting clause and entire body of the measure.

Submitted by:

Darryl Jech
Senator Jech

I hereby grant permission for the floor substitute to be adopted.

Ally Seiffert
Senator Seiffert, Chair (required)

Darryl Jech
Senator Jech

Mark Boren
Senator Boren

Chris Gillespie
Senator Bullard
Senator Gillespie

Bob Gollihare
Senator Gollihare

Carroll Hicks
Senator Hicks

Ben Logan
Senator Logan

Resino
Senator Resino

Senator Paxton, President Pro Tempore

Senator Daniels, Majority Floor Leader

Note: Technology and Telecommunications committee majority requires five (5) members' signatures.

Jech-BRC-FS-931
2/20/2026 12:55 PM

(Floor Amendments Only)

Date and Time Filed: 3-12-26 1:18pm

☐ Untimely

☐ Amendment Cycle Extended

☐ Secondary Amendment

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

SENATE BILL NO. 931

By: Jech of the Senate

and

Caldwell (Chad) of the
House

FLOOR SUBSTITUTE

[social media - age verification - minor users -
supervisory tools - parental consent - appeal -
determination - Attorney General - codification -
emergency]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 401 of Title 75A, unless there
is created a duplication in numbering, reads as follows:

As used in this section:

1. "Account" means a digital profile on a social media platform
that is created by a user;

2. "Connected account" means an account on a social media
platform that is directly connected to:

a. a minor user's account, or

b. an account that is directly connected to an account directly connected to a minor user's account;

3. "Content" means any information, visual depictions, tools, features, links, software, or other materials that appear on or are available or enabled through a social media platform;

4. "Directly connected" means an account on the social media platform that is connected to another account by:

a. sending a request to connect to another account holder and having the request to connect accepted by the other account holder, or

b. receiving a request to connect from another account holder and accepting the request to connect;

5. "Minor" means an individual under eighteen (18) years of age;

6. "Personal information" means information that is linked or can be reasonably linked to an individual, including, but not limited to:

a. first and last name,

b. date of birth,

c. home or physical address, including street name and city,

d. screen name or username that reveals an individual's electronic mail address, first name, or last name,

e. telephone number,

- f. Social Security number,
- g. photograph, video, or audio file containing a person's image or voice,
- h. geolocation information sufficient to identify street name and city, and
- i. any other identifier that a person may use to contact a specific individual;

7. "Push notification" means an automatic electronic message displayed on an account holder's device, when the user interface for the social media service is not actively open or visible on the device, that prompts the account holder to check or engage with the social media platform;

8. "Reasonable age verification measure" means a method of age verification that is authenticated through the upload of a valid state-issued form of identification to relate to a user of a social media platform;

9. "Reasonable age verification process" means an age verification process employed by a social media company that:

- a. uses one or more reasonable age verification measures in order to verify the age of a user of the social media platform owned, operated, or otherwise made available by the social media company,
- b. provides that requiring a user to confirm that the user is not a minor, or to insert the user's birth

1 date, is not sufficient to constitute a reasonable age
2 verification measure,

- 3 c. ensures that each user is subjected to each reasonable
4 age verification measure used by the social media
5 company as part of the age verification process, and
6 d. does not base verification of a user's age on factors
7 such as whether the user shares an Internet protocol
8 (IP) address, hardware identifier, or other technical
9 indicator with another user determined to not be a
10 minor;

11 10. "Social media company" means an entity that owns or
12 operates a social media platform;

13 11. "Social media platform" means a website or Internet medium
14 that:

- 15 a. permits a person to become a registered user,
16 establish an account, or create a profile for the
17 purpose of allowing users to create, share, and view
18 user-generated content through such an account or
19 profile,
20 b. enables one or more users to generate content that can
21 be viewed by other users of the medium, and
22 c. primarily serves as a medium for users to interact
23 with content generated by other users of the medium;
24 and

1 12. "User" means an individual who accesses or uses a social
2 media platform.

3 SECTION 2. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 402 of Title 75A, unless there
5 is created a duplication in numbering, reads as follows:

6 A. A social media company shall require each individual
7 accessing its social media platforms to create a user account in
8 order to interact with its services.

9 B. With respect to each user account of a social media platform
10 that exists as of the effective date of this act, a social media
11 company shall:

12 1. On such date, freeze all accounts;

13 2. In order to restore the functionality of an account, require
14 that the user provide age data that is verifiable using a reasonable
15 verification process subject to subsection D of this section; and

16 3. Using age data, classify each user as a minor or an adult.

17 C. At the time an individual creates a new user account to
18 access its services, a social media platform shall:

19 1. Request age data from the individual;

20 2. Verify the individual's age using a reasonable age
21 verification process, subject to subsection D of this section; and

22 3. Using age data, classify each user as a minor or an adult.

23 D. A social media platform may contract with a third party to
24 employ reasonable age verification measures as part of the social

1 media platform's reasonable age verification process, but the use of
2 a third party shall not relieve the social media platform of its
3 obligations under this act or from liability under this act.

4 E. 1. A social media platform shall segregate any personal
5 information gathered specifically for reasonable age verification
6 purposes and shall not use the personal information for any other
7 purpose except those provided in subparagraphs a through f of
8 paragraph 2 of subsection G of this section.

9 2. If a user is determined to be a minor, a social media
10 platform shall:

11 a. set default privacy settings to prioritize maximum
12 privacy of such minor user's account, including
13 settings that:

- 14 (1) restrict the visibility of the minor user's
15 account to only connected accounts,
16 (2) limit the minor user's ability to share content
17 to only connected accounts,
18 (3) restrict any data collection and sale of data
19 from a minor user's account that is not otherwise
20 required for core functioning of the social media
21 platform,
22 (4) disable search engine indexing of the minor
23 user's profiles,
24

- (5) restrict a minor user's direct messaging capabilities to only allow for direct messaging to connected accounts, and
 - (6) allow a minor user to download a file with all information associated with his or her account,
- b. implement and maintain reasonable security measures, including data encryption, to protect the confidentiality, security, and integrity of personal information collected from a minor user who is a resident of this state,
- c. provide an easily accessible and understandable notice that:
 - (1) describes any information the social media platform collects from a minor user, and
 - (2) explains how the information may be used or disclosed, and
- d. disable the following features that prolong engagement on a social media platform by a minor user:
 - (1) autoplay functions that continuously play content without user interaction,
 - (2) scroll or pagination that loads additional content as long as the user continues scrolling, and

1 (3) push notifications prompting repeated user
2 engagement.

3 3. Upon request of a parent or legal guardian of a minor user,
4 a social media platform shall:

5 a. delete the personal information of the minor user,
6 unless the information is required to be retained
7 pursuant to state or federal law, and

8 b. remove any information or material the minor user made
9 publicly available through the social media platform.

10 F. A social media platform shall limit a minor user's access to
11 its services to one (1) hour per day. A social media platform shall
12 offer the parent or legal guardian of a minor user supervisory tools
13 that the parent or legal guardian may decide to activate to
14 supervise the minor user's usage of the services provided by the
15 social media platform. Such supervisory tools shall include
16 capabilities for a parent or legal guardian to:

17 1. Set time limits for the minor user's daily social media
18 service usage across devices;

19 2. Schedule mandatory breaks for the minor user during selected
20 days and times across devices;

21 3. View:

22 a. data detailing the minor user's total and average
23 daily time spent on the social media platform across
24 devices,

- b. a list of connected accounts,
- c. a list of accounts blocked by the minor user, and
- d. the minor user's:
 - (1) privacy settings,
 - (2) content sensitivity settings, and
 - (3) direct messaging settings and permissions; and

4. Receive notifications when the minor user changes an account setting described in this subsection.

A social media platform shall inform the parent or legal guardian of a minor user of their access to these supervisory features and of the parent or legal guardian's right to utilize such features.

G. 1. A social media platform shall not allow a minor user who is a resident of this state to change the default data privacy setting provided for in subparagraph a of paragraph 2 of subsection E of this section without first obtaining verifiable written consent from a minor user's parent or legal guardian. The social media platform shall verify the identity of the person consenting and the relationship of the person consenting for the minor.

2. A social media platform's terms of service related to a minor user who is a resident of this state shall be presumed to include an assurance of confidentiality for the minor user's personal information. The presumption of confidentiality may be overcome if the social media platform obtains verifiable written

1 consent from a parent or legal guardian of the minor user. The
2 presumption of confidentiality does not apply to a social media
3 platform's internal use or external sharing of a minor user's
4 personal information if the use or sharing is necessary to:

- 5 a. maintain or analyze functioning of the social media
6 service,
- 7 b. enable network communications,
- 8 c. personalize the user's experience based on the user's
9 age and location,
- 10 d. display a username chosen by the minor user,
- 11 e. obtain reasonable age verification information as
12 required by subsection C of this section, or
- 13 f. comply with the requirements of this act or any other
14 federal or state law.

15 H. A social media platform shall:

- 16 1. Implement a review process allowing a user to appeal his or
17 her age designation by submitting documentary evidence to establish
18 the user's age range; and
- 19 2. Review evidence submitted by the user and make a
20 determination within thirty (30) days of submission of the evidence.

21 I. The provisions of this section shall not apply to a text
22 messaging platform or a platform for which the primary purpose is
23 related to education or health care.
24

SECTION 3. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 403 of Title 75A, unless there is created a duplication in numbering, reads as follows:

A. In the case of a violation of Section 2 of this act, the Attorney General may bring a civil action in the District Court of Oklahoma County or a district court in the county in which the violation occurred to:

1. Enjoin the violation;
2. Enforce compliance with Section 2 of this act; or
3. Obtain civil penalties under subsection C of this section.

B. The Attorney General may promulgate any rules necessary to enforce the provisions of this act.

C. Any social media company that violates this act shall be subject to a civil penalty not to exceed Two Thousand Five Hundred Dollars (\$2,500.00) for each violation. Each individual violation shall be considered a separate violation.

SECTION 4. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

60-2-3709 BRC 3/12/2026 1:35:31 PM